



Appeal Decision

Site visit made 7 September 2026

by **B Plenty BSc (Hons) DipTP MRTPI**

an Inspector appointed by the Secretary of State

Decision date: 14 September 2026

Appeal Ref: 6003569

Crockmore Cottage, Crockmore Lane, Fawley RG9 6HZ

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Helen Burton against the decision of Buckinghamshire Council.
 - The application Ref is 24/07796/FUL.
 - The development proposed is Installation of Ground-Mounted Solar Panels (200 kW Total Capacity) comprising 12 rows of panels, each oriented 6 degrees west of due south.
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Decision

1. The appeal is allowed and planning permission is granted for the Installation of Ground-Mounted Solar Panels (200 kW Total Capacity) comprising 12 rows of panels, each oriented 6 degrees west of due south at Crockmore Cottage, Fawley RG9 6HZ in accordance with the terms of the application, Ref 24/07796/FUL, and the plans submitted with it, subject to the conditions in the attached schedule.

Preliminary Matters

2. The appeal site is within the Chilterns National Landscape (NL). Section 85 of the Countryside and Rights of Way Act 2000 (as amended)(the CRoW Act) required decision makers to have regard to the purpose of conserving and enhancing the natural beauty of the area. Since 2023, Section 245 of the Levelling-Up and Regeneration Act (LURA) amended the duty on relevant authorities in respect of their interactions with statutory purposes of Areas of Outstanding Natural Beauty (AONBs – now NLs), as set out in the CRoW Act. In so far as it relates to this appeal, the amendment now requires relevant authorities “in exercising or performing any functions in relation to, or so as to affect land in an, AONB...must seek to further the purpose of conserving and enhancing the natural beauty of the AONB”.
3. The Council’s second Reason for Refusal (RfR) related to the effect of the proposal on ecological interests and Biodiversity net gain. The appellant’s Preliminary Ecological Appraisal (January 2026), small sites metric and user guide (2025) and statement regarding interpretation of small sites metric have been submitted in support of the appeal. Following consideration of the further information, the Council informs that it no longer seeks to defend RfR2 as the submitted details demonstrate that the proposed development would not have an adverse effect on protected species or ecological habitats.
4. Furthermore, the Council also accepts the appellant’s contention that in consideration of the small sites metric user guide the scheme would comply with the small site’s metric, being under 1ha and as the works are minor there is no credible

pathway for the development to affect priority habitats within 500m of the site. I see no reason to disagree with these matters and therefore consider this RfR has been addressed.

Main Issue

5. The main issue is the effect of the proposal on the landscape and visual amenity of the surrounding area, and the NL.

Reasons

Policy Background

6. This application is not an energy development which is a nationally significant infrastructure project (NSIP) under the Planning Act 2008. Nonetheless, the Overarching National Policy Statement for energy (EN-1) may be a material consideration for applications under the Town and Country Planning Act 1990 (as amended). This sets out the national policy for energy infrastructure and establishes the Government's approach to meeting its net zero objectives. It recognises that to meet the Government's objectives and targets for net zero by 2050, significant large and small-scale energy infrastructure will be required. Furthermore, the National Policy Statement for Renewable Energy Infrastructure (EN-3) sets out national policy in respect of renewable energy and identifies '*an urgent need for new electricity generating capacity to meet our energy objectives.*'
7. Whether policies in EN-1 and EN-3 are material, and to what extent, should be judged on a case-by-case basis. In this case the proposal is for a solar farm creating up to 200 kilowatts of energy and would generate around 203 MWh of renewable energy, powering up to 70 homes annually. The site benefits from a connection to a three-phase low voltage grid connection within the grounds of the property, which provides support for the scheme. It therefore falls below the threshold for NSIP but due to its scale, EN-1 and EN-3 are deemed to be policy documents of moderate weight.
8. The UK Government has declared a climate emergency and set a statutory target of achieving net zero emissions by 2050, and this is also a material consideration. Since the declaration, the Sixth Assessment Report of the Intergovernmental Panel on Climate Change has indicated that there is a greater than 50% chance that global temperature increases will exceed 1.5 degrees Celsius above pre-industrial levels. The report indicates that delay in global action to address climate change will miss a rapidly narrowing window of opportunity to secure a liveable and sustainable future for all¹.
9. Powering up Britain [2023] seeks to accelerate the deployment of renewables and increase our solar power five-fold by 2035. This explains that solar has a huge potential to help decarbonise the power sector and that we need to maximise deployment of solar to achieve our overall target. Solar power presents significant benefits as it is regarded as one of the cheapest forms of electricity generation and is readily deployable. It is considered that meeting energy security and climate change goals is urgent and of critical importance to the country, and that these goals can be achieved together with maintaining food security for the UK.

¹ IPCC Sixth Assessment Report - Summary for Policymakers, paragraph D.5.3

10. The National Planning Policy Framework 2026 (the Framework) explains that the planning system should support the transition to clean power by planning positively for the increased supply and use of low carbon energy in a changing climate. Its decision-making policies, at policy W3, explain that substantial weight should be given to the benefits of improving energy security, supporting economic development and electricity network infrastructure. It also states that planning authorities should not require a developer to demonstrate a need for low carbon or renewable energy development. It states that substantial weight should be given to the contribution that small-scale community-led renewable projects can make to reducing greenhouse gas emissions, along with their economic and social benefits.
11. Policy DM33 of the Wycombe District Local Plan [2019] (LP), with respect to managing carbon emissions: Transport and energy generation, seeks to integrate renewable technologies into developments.
12. The proposed development would make a valuable contribution to achieving these local and national goals. The policy context, in supporting the delivery of a substantial level of renewable energy projects, provides compelling evidence for the need for solar schemes, such as proposed, and conveys significant weight in favour of the proposal.
13. LP Policy DM44, with respect to development in the countryside, lists at a) to i) criteria for which permission would be granted. The proposal would fail to meet any of these criteria and thus would conflict with this policy. Nonetheless, the Council asserts that the benefits of renewable energy would clearly outweigh the objection in principle established by the conflict with this policy, subject to assessment against its detailed development control policies.

Landscape and visual amenity

14. The appeal site consists of the upper half of a small field. The site is enclosed on its southwest and northwest boundaries with a post and rail fence. To its southeast boundary, marking the limits of the Crockmore Cottage grounds, is a tree and hedge screen which is both tall and dense. The southeast boundary would be the midpoint through the field and currently has no defined boundary. Accordingly, the site is enclosed partly by thick tree and hedge screening and is partly open to surrounding fields. The site slopes gradually from southeast to northwest, with Crickmore Lane at the lowest point beyond a hedge and tree boundary.
15. The special qualities of the NL include the steep chalk escarpment with areas of flower-rich downland, broadleaved woodlands (especially beech), commons, tranquil valleys, the network of ancient routes, villages with their brick and flint houses, globally rare chalk streams and a rich historic environment of hillforts and chalk figures. Its special qualities include its tranquillity and remoteness along with visually sensitive skylines, geological and topographical features which contribute towards making it a special landscape.
16. The appeal site consists of grassland and as such is relatively common and typical of the area. Nonetheless, its undeveloped form and general good landscape quality and condition mean it is characteristic of the surrounding rural area. As a result, the site makes a positive contribution to the character type and the appearance of the area.

17. The Framework identifies that development within Protected Landscapes, which include National Landscapes, requires substantial weight to be afforded to conserving and enhancing their natural beauty. It requires development to be limited in scale and extent, be sensitively located and be designed to avoid harm to the Protected Landscape. It also requires proposals deemed to be major development should be refused unless exceptional circumstances exist. Main parties agree that the scheme is not major development and therefore consideration of the proposal's scale and extent, and its overall landscape and visual effects, are required.
18. The proposed development would retain the existing native hedgerows and trees around the site. The appellant's submission includes photographs of the boundary hedge in the winter, these demonstrate that whilst foliage is less, transparency is still limited forming a thick screen throughout the year, screening the proposal. Furthermore, the proposal would also maintain the existing field pattern of the site and would not include land reforming. Therefore, whilst the proposed solar panels would be man-made structures within a rural setting, these would be low-lying and could be absorbed into its local context. This would cause only modest harm to the NL and its special qualities. Given the substantial overall scale of the NL, and the modest size of the appeal site, the proposal would result in only a minor adverse effect to the area's landscape character.
19. Most of the valued attributes of the relevant NL character area would be unaffected by the development, with harm through the introduction of the modest built form proposed only affecting the two of its valued attributes being its tranquillity and remoteness. In addition, the NL's most important overall landscape characteristics (its visually sensitive skylines, and its geological and topographical features) would be unaffected. Combined with the development's extremely modest scale relative to the NL, the overall effect of the development on the NL would be minor adverse, causing only modest landscape harm.
20. In terms of visual effects, the appellant's visual assessment shows the site from several views around its perimeter, although these do not show the impact of the proposal on these views. Nonetheless, the site is well contained, affording very limited public views of the site, causing localised effects only. Views through the hedgerow from Crockmore Lane are extremely limited to being barely perceptible. Whilst the Council asserts that the site benefits from only partial screening, it has not demonstrated where the proposal could be seen from the public realm. Furthermore, whilst the Council suggest that the hedge and tree screening should be regarded as short term and temporary, on site I found the screening to be robust and verdant, enabling long-term screening capability.
21. The appellant's visibility assessment suggests that views from the South Oxfordshire Way would be, at most, brief and limited by vegetation and I see no reason to disagree with this conclusion. As such, views from outside the site would be negligible causing no adverse visual effects.
22. Consequently, the proposal would cause conflict, albeit modest, with LP policy DM30 and the Chilterns Area of Outstanding Natural Beauty Plan 2019-2024. These require, among other matters, for development to conserve and enhance the natural beauty of the AONB. The scheme would also fail to further the purpose of conserving and enhancing the natural beauty of the AONB, in conflict with Section 85 of the CROW Act, due to the identification of modest landscape harm.

Planning Balance

23. The proposal would conflict with LP policies DM30 and DM44, causing conflict with the development plan. The conflict I have identified with development plan policies in relation to this matter therefore leads me to conclude that the appeal proposal conflicts with the development plan as a whole. Planning law requires that applications for planning permission be determined in accordance with the development plan unless material considerations indicate otherwise.
24. The Framework requires substantial weight to be applied to conserving and enhancing the natural beauty of such areas. The proposed development would be modest in scale and extent, and its location would limit its visual and landscape effects. Accordingly, harm to the NL would be limited based on the development's location, where public views are limited and has been sensitively placed in a well screened setting causing only moderate harm. Furthermore, the Framework recognises at policy S5(1), that only certain forms of development should be approved outside settlements, including at (a) infrastructure projects for energy, supporting the principle of the scheme.
25. Furthermore, LP Policy DM33 supports the provision of renewable energy development in addition to the support garnered by the Framework at policies CC2 and W2, which seek substantial weight to be applied to the benefits of renewable and low carbon projects.
26. In this case, I have found that the harm to the landscape would be localised and (at most) moderate. With the effect of the development on the NL being minor adverse, the appeal proposal would also be inconsistent with the promotion of the statutory purposes of conserving and enhancing the NL's natural beauty. On the other hand, as detailed above, the development would result in extensive environmental, social and economic benefits in support of the provision of renewable energy. Accordingly, the adverse impacts, the conflict with relevant development plan policies and the inconsistency with the statutory purposes of the NL are outweighed by the scheme's substantial benefits.

Conditions

27. I have considered the use of conditions in line with the guidance set out in the planning practice guidance (PPG). I shall take the Council's suggested conditions into consideration and with some amendments and adjustments for clarity. I have applied an implementation period and standard condition with respect to approved plans as advised by the PPG for clarity and certainty [conditions 1 and 2].
28. Furthermore, conditions are required to secure the decommissioning of the site following the cessation of the use to prevent ongoing harm to the NL [3 and 4]. A condition is also required to ensure water runoff is captured to prevent off-site flooding [5] and to ensure that the requirements of the ecological appraisal are complied with in the interests of biodiversity [6].

Conclusion

29. Planning law requires that applications for planning permission be determined in accordance with the development plan unless material considerations indicate otherwise. In this instance, material considerations outweigh the harm that would arise, the conflict with development plan policies and the great weight afforded to

conserving and enhancing landscape and scenic beauty of the NL and the conservation of designated heritage assets. Consequently, the development should be permitted notwithstanding the conflict with the development plan as a whole.

30. For the above reasons, the appeal is therefore allowed.

B Plenty

INSPECTOR

Schedule of conditions

- 1) The development hereby permitted shall begin not later than [3] years from the date of this decision.
- 2) The development hereby permitted shall be built in accordance with the details contained in the planning application hereby approved and plan numbers BC1; BC2; BC3; BC4; BC5; 1; 2 (as submitted to Buckinghamshire Council on 19th November 2024).
- 3) Should the solar panels not be used continuously for the production of energy for a period of six months, the panels, support structures and associated buildings shall be removed in their entirety and the land shall be restored to its former condition in accordance with a scheme of work submitted to and approved (unless otherwise agreed) in writing by the Local Planning Authority.
- 4) Within six months of the cessation of electricity generation by the solar facility hereby permitted, or within 30 years and six months following a permanent cessation of construction works prior to the facility coming into operational use, whichever is the sooner, the solar photovoltaic panels, frames, foundations, inverter modules and all associated structures and fencing approved shall be dismantled and removed from the site. The developer shall notify the Local Planning Authority in writing no later than five working days following cessation of power production. The site shall subsequently be restored in accordance with a scheme, the details of which shall be submitted to and approved in writing by the Local Planning Authority no later than three months following the cessation of power production.
- 5) The development hereby approved shall store all additional rainwater runoff within the site and either reuse it or release it into the ground through infiltration. Where the additional runoff is not to be re-used or on-site infiltration methods are not proposed, details of how the risk of flooding elsewhere will not be increased shall be submitted to and approved by the local planning authority prior to any development taking place. The approved details shall thereafter be implemented prior to the development being brought into use and thereafter managed and maintained for the lifetime of the development.
- 6) The development, hereby approved, shall be undertaken in accordance with the ecological mitigation measures specified in the submitted Preliminary Ecological Appraisal, by Arbtech, dated 9th January 2026, unless otherwise first agreed in writing by the Local Planning Authority.

End of conditions